

Hanshraj v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 February 2012 · Writ-C No. 7838 of 2012 · **Writ disposed; connection application to be considered afresh after indemnity-bond formalities under the Supply Code, preferably within three months.**

HEADNOTE

A new-connection application rejected for want of the landlord's no-objection certificate was not decided on merits. The Division Bench disposed of the writ by directing the licensee to intimate the applicant of the Supply Code requirements, including the indemnity bond contemplated by clause 4.4, and to consider the application afresh after those formalities, preferably within three months. Connection was not directed.

FACTUAL SUMMARY

Hanshraj applied for an electricity connection. The Executive Engineer rejected the application on 18 August 2011 because the landlord had not granted a no-objection certificate. The petitioner said he had never been asked to furnish a bond or other security, and that clause 4.4 of the U.P. Electricity Supply Code, 2005 permits supply of energy on an indemnity bond in the absence of a landlord's NOC. The State and the licensee were represented.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant-connection-on-indemnity-bond

HOLDING

Where a new-connection application is rejected for want of a landlord's no-objection certificate, the licensee is to intimate the applicant of the requirements for supply under the U.P. Electricity Supply Code, 2005, including the indemnity bond contemplated by clause 4.4, and to consider the application afresh after those formalities, preferably within three months. The writ was disposed of on those observations; connection was not directed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A CONNECTION ON THE EXISTING APPLICATION, AND WHETHER THE EXECUTIVE ENGINEER'S 18.8.2011 REJECTION WAS VALID ON MERITS

The 18.8.2011 order was not quashed; the writ was disposed with a direction to intimate indemnity-bond requirements and consider the application afresh. ¶ 1